

## LIMITED SCOPE REPRESENTATION ATTORNEY CLIENT AGREEMENT

(North Carolina)

This Limited Scope Representation Agreement ("Agreement") is entered into between:

Attorney: Niki Foster, Attorney at Law

Client: \_\_\_\_\_

Date: \_\_\_\_\_

### 1. NATURE OF REPRESENTATION

Pursuant to Rule 1.2(c) of the Rules of Professional Conduct as adopted by the North Carolina State Bar, Attorney and Client agree that the legal representation provided under this Agreement is limited in scope. Attorney will provide legal services only as specifically described in Section 2. No other services are included unless agreed to in a separate written agreement.

### 2. SCOPE OF SERVICES

Attorney agrees to perform the following services (check all that apply):

- ☐ Legal consultation and advice
- ☐ Case evaluation and strategy
- ☐ Drafting pleadings, motions, or other documents
- ☐ Review and revision of Client-prepared documents
- ☐ Legal research
- ☐ Preparation for hearings, mediation, or trial
- ☐ Assistance with discovery (requests, responses, objections)
- ☐ Appellate or post-conviction drafting (including MAR support)
- ☐ Other: \_\_\_\_\_

\_\_\_\_\_  
\_\_\_\_\_

Excluded Services (unless separately agreed):

- Filing documents with the court
- Communicating with opposing counsel
- Appearing in court or at hearings
- Ongoing case management

### 3. NO GENERAL APPEARANCE / LIMITED APPEARANCE DISCLOSURE

Attorney does not agree to enter a general appearance in any court proceeding unless a separate written agreement is executed. Client acknowledges and accepts this risk.

*Client assumes full responsibility for monitoring and meeting all court deadlines, responding to court orders, and managing all filings.*

### 4. NO ONGOING REPRESENTATION

This Agreement does not create a continuing attorney-client relationship beyond the services

described. Representation concludes upon:

- Completion of the services described above, or
- Written notice from Attorney

Attorney has no obligation to monitor deadlines or take further action after completion.

## 5. INFORMED CONSENT

Client acknowledges:

- The advantages and risks of limited scope representation have been explained
- Full representation is available but has not been selected
- Limited scope services may not be appropriate for all matters
- Client has had the opportunity to ask questions

Client gives informed consent to this limited representation.

## 6. GHOSTWRITING / DRAFTING ASSISTANCE DISCLOSURE

Attorney and Client agree that Attorney may provide drafting assistance (“ghostwriting”) for pleadings, motions, briefs, or other documents to be filed by Client acting *pro se*.

Ghostwriting may include:

- Drafting documents for Client’s review and filing
- Revising or editing Client-prepared filings
- Providing legal research incorporated into filings

Attorney may or may not be identified on the face of such documents, depending on applicable law and court practice.

The parties agree that:

- Attorney’s assistance in drafting documents does not constitute an appearance in the matter
- Attorney does not become counsel of record solely by providing drafting assistance

Client remains fully responsible for:

- The content of all filed documents
- Compliance with court rules, formatting, and deadlines
- Signing and filing all documents unless otherwise agreed

Client will review all documents carefully before filing and assumes responsibility for any revisions or final decisions.

Candor to the Tribunal — Rule 3.3(a)(1): Under Rule 3.3(a)(1) of the North Carolina Rules of Professional Conduct, no person may knowingly make a false statement of material fact or law to a tribunal. This obligation applies regardless of whether a party is represented or acting *pro se*, and it extends to documents prepared with attorney assistance. Client agrees not to:

- Represent to the court that documents were prepared entirely without legal assistance if such a statement would be false
- Use Attorney's work in any way that would mislead the court
- Sign or submit any document containing a statement Client knows to be false or

materially misleading

Client understands that a violation of Rule 3.3(a)(1) may result in court-imposed sanctions, contempt, or other consequences, and constitutes grounds for Attorney's immediate withdrawal under Rule 1.16 of the North Carolina Rules of Professional Conduct.

## 7. CLIENT RESPONSIBILITIES

Client acknowledges and agrees that:

1. Client retains sole responsibility for all matters not specifically listed above, including but not limited to court appearances, filings, service of process, and compliance with all deadlines.
2. Client must promptly inform Attorney of all deadlines, court dates, opposing counsel communications, and any new developments in the matter.
3. Client must provide Attorney with complete, accurate, and timely information, documents, and instructions necessary for Attorney to perform the limited services.
4. Client understands that Attorney may rely on information provided by Client without independent verification unless otherwise agreed.
5. Client is responsible for reviewing all work product delivered by Attorney, asking questions, and making all strategic and substantive decisions about the matter.
6. Client agrees to file all documents unless otherwise agreed in writing.
7. Client agrees to communicate directly with the court and opposing parties unless otherwise agreed.

## 8. CONFIDENTIALITY

Attorney will maintain the confidentiality of all information relating to the representation in accordance with Rule 1.6 of the North Carolina Rules of Professional Conduct. The limited scope of representation does not diminish Attorney's duty of confidentiality.

## 9. CONFLICTS OF INTEREST

Attorney has conducted a preliminary conflicts check based on information provided by Client. Client represents that Client has disclosed all parties known to Client who are adverse or potentially adverse to Client in this matter. Attorney's representation is limited to the specific task(s) identified herein and does not create a general attorney-client relationship that would give rise to conflicts in unrelated matters unless otherwise agreed in writing.

## 10. FEES AND PAYMENT

☐ Flat Fee: \$\_\_\_\_\_ for the services described

☐ Hourly Rate: \$\_\_\_\_\_ per hour

Payment terms: \_\_\_\_\_

Additional work outside the agreed scope requires a separate agreement and may incur additional fees.

The flat fee does not include any out-of-pocket expenses including, but not limited to, filing fees, copying costs, notary fees, postage, mailing, or fees for medical records. Costs are billed separately from attorney fees. Attorney will seek Client's approval before incurring any single expense exceeding \$50.00.

#### 11. NO GUARANTEE OF OUTCOME

Attorney makes no guarantees regarding the outcome of any matter.

#### 12. DISPUTES

The parties agree that any dispute surrounding this Agreement shall be resolved through mediation. North Carolina law would apply to any dispute under this Agreement.

#### 13. COMPLETION AND TERMINATION

##### Completion

This Agreement terminates upon Attorney's delivery of the work product or completion of the specific services identified in Section 1. Attorney's obligations are fulfilled upon delivery of the specified work product, and no ongoing representation is created or implied.

##### Termination by Client

Client may terminate this Agreement at any time upon written notice to Attorney. Client remains responsible for fees and costs incurred prior to termination.

##### Withdrawal by Attorney

Attorney may withdraw from this representation upon reasonable notice to Client for good cause, including but not limited to: Client's failure to pay agreed fees; Client's failure to cooperate; Client's request that Attorney take action Attorney believes to be unlawful or unethical; or other grounds permitted under Rule 1.16 of the North Carolina Rules of Professional Conduct. Upon withdrawal, Attorney will take reasonable steps to protect Client's interests and deliver all work product completed through the date of withdrawal.

#### 14. ENTIRE AGREEMENT

This Agreement contains the entire understanding between Attorney and Client regarding the scope of representation. Any modification must be in writing.

The parties agree that electronic signatures, including signatures obtained through DocuSign, Adobe Sign, or similar platforms, or by typed name in an email or electronic document, are valid and binding to the same extent as original ink signatures, consistent with the North Carolina Uniform Electronic Transactions Act, N.C.G.S. § 66-311 *et seq.*

Client:

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Attorney:

Signature: \_\_\_\_\_

Date: \_\_\_\_\_